

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE  
RECOMMENDATION

FOR ENGROSSED

SENATE BILL NO. 1264

By: Gillespie of the Senate

and

Miller of the House

POLICY COMMITTEE RECOMMENDATION

[ crimes and punishments - Class A3 offenses - Class  
B3 offenses - assault and battery - repealers -  
effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 366, O.S.L.  
2024, as amended by Section 1, Chapter 187, O.S.L. 2025 (21 O.S.  
Supp. 2025, Section 20E), is amended to read as follows:

Section 20E. A. ~~Upon the effective date of this act~~ On or  
after January 1, 2026, Class A3 shall include the following criminal  
offenses:

1. Domestic assault and battery with a deadly weapon, as  
provided for in ~~paragraph 2 of subsection D of Section 644 of Title~~  
~~21 of the Oklahoma Statutes~~ this title;

1        2. Second or subsequent conviction of domestic abuse against a  
2 pregnant woman with knowledge of the pregnancy, as provided for in  
3 paragraph 2 of subsection E of Section 644 of ~~Title 21 of the~~  
4 ~~Oklahoma Statutes~~ this title;

5        3. Aggravated assault and battery upon a police officer,  
6 sheriff, deputy sheriff or highway patrolman, corrections personnel,  
7 or any state peace officer, as provided for in subsection A of  
8 Section 650 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9        4. Shooting with the intent to kill, as provided for in  
10 subsection A of Section 652 of ~~Title 21 of the Oklahoma Statutes~~  
11 this title;

12        5. Using a vehicle to facilitate the intentional discharge of a  
13 firearm, crossbow, or other weapon, as provided for in subsection B  
14 of Section 652 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15        6. Assault and battery with a deadly weapon, as provided for in  
16 subsection C of Section 652 of ~~Title 21 of the Oklahoma Statutes~~  
17 this title;

18        7. Maiming, as provided for in Section 751 of ~~Title 21 of the~~  
19 ~~Oklahoma Statutes~~ this title;

20        8. Sexual abuse by a caretaker, as provided for in paragraph 2  
21 of subsection B of Section 843.1 of ~~Title 21 of the Oklahoma~~  
22 ~~Statutes~~ this title;

23        9. Child abuse, as provided for in subsection A of Section  
24 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1        10. Enabling child abuse, as provided for in subsection B of  
2 Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3        11. Child sexual abuse, as provided for in subsection E of  
4 Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5        12. Enabling child sexual abuse, as provided for in subsection  
6 G of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7        13. Child sexual exploitation, as provided for in subsection H  
8 of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9        14. Enabling child sexual exploitation, as provided for in  
10 subsection J of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~  
11 this title;

12        15. Lewd or indecent proposals or acts to a child, as provided  
13 for in subsection A of Section 1123 of ~~Title 21 of the Oklahoma~~  
14 ~~Statutes~~ this title;

15        16. Terrorism, as provided for in subsection B of Section  
16 1268.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17        17. Conspiracy to commit terrorism, as provided for in  
18 subsection A of Section 1268.3 of ~~Title 21 of the Oklahoma Statutes~~  
19 this title;

20        18. Any person above the age of eighteen (18) who, on campuses  
21 or public school grounds, advocates revolution, sabotage, force and  
22 violation, sedition, treason, or the overthrow of the United States  
23 government, as provided for in subsection B of Section 1327 of ~~Title~~  
24 ~~21 of the Oklahoma Statutes~~ this title;

1        19. Arson in the first degree, as provided for in subsection A  
2 of Section 1401 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3        20. Arson while manufacturing, attempting to manufacture, or  
4 endeavoring to manufacture a controlled dangerous substance, as  
5 provided for in subsection B of Section 1401 of ~~Title 21 of the~~  
6 ~~Oklahoma Statutes~~ this title; and

7        21. Causing personal injury while committing an act of arson,  
8 as provided for in Section 1405 of ~~Title 21 of the Oklahoma Statutes~~  
9 this title.

10        B. Any person convicted of a Class A3 criminal offense set  
11 forth in this section shall be punished in accordance with the  
12 corresponding penalties provided for in the Oklahoma Statutes.

13        SECTION 2.        AMENDATORY        Section 8, Chapter 366, O.S.L.  
14 2024 (21 O.S. Supp. 2025, Section 20H), is amended to read as  
15 follows:

16        Section 20H. A. ~~Upon the effective date of this act~~ On or  
17 after January 1, 2026, Class B3 shall include the following criminal  
18 offenses:

19        1. Embezzlement of state property by a public officer of the  
20 state or any county, city, town, or member or officer of the  
21 Legislature, deputy, or clerk, as provided for in Section 341 of  
22 ~~Title 21 of the Oklahoma Statutes~~ this title;

1        2. Burning, destroying, or injuring any public building, as  
2 provided for in Section 349 of ~~Title 21 of the Oklahoma Statutes~~  
3 this title;

4        3. Resisting or aiding in resisting the execution of process,  
5 as provided for in Section 539 of ~~Title 21 of the Oklahoma Statutes~~  
6 this title;

7        4. Domestic abuse with a prior pattern of physical abuse, as  
8 provided for in Section 644.1 of ~~Title 21 of the Oklahoma Statutes~~  
9 this title;

10       5. ~~Assault, battery, or assault and battery upon an intimate~~  
11 ~~partner or a family or household member with any sharp or dangerous~~  
12 ~~weapon, as provided for in paragraph 1 of subsection D of Section~~  
13 ~~644 of Title 21 of the Oklahoma Statutes;~~

14       ~~6.~~ Assault and battery against a current or former intimate  
15 partner or a family or household member that results in great bodily  
16 injury to the victim, as provided for in subsection F of Section 644  
17 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18       ~~7.~~ 6. Second or subsequent conviction for assault and battery  
19 by strangulation or attempted strangulation against an intimate  
20 partner or a family or household member, as provided for in  
21 subsection J of Section 644 of ~~Title 21 of the Oklahoma Statutes~~  
22 this title;

23       ~~8.~~ 7. Second or subsequent conviction for committing or  
24 attempting to commit a felony while wearing body armor, as provided

1 for in Section 1289.26 of ~~Title 21 of the Oklahoma Statutes~~ this  
2 title;

3 ~~9.~~ 8. Riotous assembly for the purpose of resisting the  
4 execution of any statute or obstructing any public officer, as  
5 provided for in paragraph 2 of Section 1312 of ~~Title 21 of the~~  
6 ~~Oklahoma Statutes~~ this title;

7 ~~10.~~ 9. Carrying at the time of a riot any firearm or other  
8 deadly weapon or being disguised while participating in a riot, as  
9 provided for in paragraph 3 of Section 1312 of ~~Title 21 of the~~  
10 ~~Oklahoma Statutes~~ this title;

11 ~~11.~~ 10. Directing, advising, encouraging, or soliciting other  
12 persons to use force or violence while participating in a riot, as  
13 provided for in paragraph 4 of Section 1312 of ~~Title 21 of the~~  
14 ~~Oklahoma Statutes~~ this title;

15 ~~12.~~ 11. Arson with the intent to injure or defraud the insurer,  
16 as provided for in subsection B of Section 1403 of ~~Title 21 of the~~  
17 ~~Oklahoma Statutes~~ this title;

18 ~~13.~~ 12. Forgery in the first degree, as provided for in Section  
19 1561 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 ~~14.~~ 13. Forgery of stock certificates or securities, as  
21 provided for in Section 1562 of ~~Title 21 of the Oklahoma Statutes~~  
22 this title;

1       ~~15.~~ 14.   Fraudulently uttering one's signature on any instrument  
2 as that of another with the same name, as provided for in Section  
3 1622 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4       ~~16.~~ 15.   Fraudulently uttering one's endorsement on any  
5 negotiable instrument as that of another with the same name, as  
6 provided for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~  
7 this title;

8       ~~17.~~ 16.   Total or partial erasure or obliteration of any  
9 instrument or writing with intent to defraud, as provided for in  
10 Section 1624 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11       ~~18.~~ 17.   Signing fictitious name as an officer or agent of a  
12 corporation, as provided for in Section 1626 of ~~Title 21 of the~~  
13 ~~Oklahoma Statutes~~ this title;

14       ~~19.~~ 18.   Procuring, soliciting, selling, or receiving more than  
15 ten ~~(10)~~ telephone records by fraudulent, deceptive, or false means,  
16 as provided for in paragraph 3 of subsection B of Section 1742.2 of  
17 ~~Title 21 of the Oklahoma Statutes~~ this title;

18       ~~20.~~ 19.   Violating the Viatical Settlements Act of 2008, as  
19 provided for in paragraph 1 of subsection F of Section 4055.14 of  
20 Title 36 of the Oklahoma Statutes;

21       ~~21.~~ 20.   Third or subsequent conviction of driving under the  
22 influence of alcohol or other intoxicating substance, as provided  
23 for in paragraph 4 of subsection C of Section 11-902 of Title 47 of  
24 the Oklahoma Statutes;

1       ~~22.~~ 21. Driving under the influence with a blood or breath  
2 alcohol concentration of fifteen-hundredths (0.15) or more, as  
3 provided for in subsection D of Section 11-902 of Title 47 of the  
4 Oklahoma Statutes;

5       ~~23.~~ 22. Injuring, destroying, or attempting to injure or  
6 destroy any hazardous liquid transportation system, as provided for  
7 in Section 47.6 of Title 52 of the Oklahoma Statutes;

8       ~~24.~~ 23. Bringing into or having in his or her possession in any  
9 jail, state penal institution, or other place where prisoners are  
10 located, any gun, knife, bomb, other dangerous instrument,  
11 controlled dangerous substance, alcoholic beverage, money, or  
12 financial documents, as provided for in subsection A of Section 21  
13 of Title 57 of the Oklahoma Statutes;

14       ~~25.~~ 24. Purchasing or attempting to purchase, receive, or  
15 otherwise acquire any product, mixture, or preparation containing  
16 any detectable quantity of base pseudoephedrine or ephedrine after a  
17 conviction of manufacturing or attempting to manufacture  
18 methamphetamine, as provided for in paragraph 5 of subsection G of  
19 Section 2-401 of Title 63 of the Oklahoma Statutes;

20       ~~26.~~ 25. Distributing, other than by dispensing, a Schedule I or  
21 Schedule II controlled dangerous substance, in the course of  
22 legitimate business, as provided for in paragraph 1 of subsection A  
23 of Section 2-406 of Title 63 of the Oklahoma Statutes;

1       ~~27.~~ 26. Using a fictitious, revoked, suspended, or fraudulent  
2 registration number in the course of manufacturing or distributing a  
3 controlled dangerous substance, as provided for in paragraph 2 of  
4 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

5       ~~28.~~ 27. Furnishing false or fraudulent material information in,  
6 or omitting any material information from, any application, report,  
7 or document required by the Uniform Controlled Dangerous Substances  
8 Act, as provided for in paragraph 4 of subsection A of Section 2-406  
9 of Title 63 of the Oklahoma Statutes;

10       ~~29.~~ 28. Making, distributing, or possessing any punch, die,  
11 plate, stone, or other thing designed to print, imprint, or  
12 reproduce the trademark, trade name, or other identifying mark, upon  
13 any drug, container, or labeling, as provided for in paragraph 5 of  
14 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

15       ~~30.~~ 29. Trafficking twenty-five (25) pounds or more of  
16 marijuana, as provided for in subparagraph a of paragraph 1 of  
17 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

18       ~~31.~~ 30. Trafficking twenty-eight (28) grams or more of cocaine,  
19 coca leaves, or cocaine base, as provided for in subparagraph a of  
20 paragraph 2 of subsection C of Section 2-415 of Title 63 of the  
21 Oklahoma Statutes;

22       ~~32.~~ 31. Trafficking three hundred (300) grams or more of  
23 cocaine, coca leaves, or cocaine base, as provided for in  
24

1 subparagraph b of paragraph 2 of subsection C of Section 2-415 of  
2 Title 63 of the Oklahoma Statutes;

3 ~~33.~~ 32. Trafficking ten (10) grams or more of heroin, as  
4 provided for in subparagraph a of paragraph 3 of subsection C of  
5 Section 2-415 of Title 63 of the Oklahoma Statutes;

6 ~~34.~~ 33. Trafficking twenty (20) grams or more of amphetamine or  
7 methamphetamine, as provided for in subparagraph a of paragraph 4 of  
8 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

9 ~~35.~~ 34. Trafficking two hundred (200) grams or more of  
10 amphetamine or methamphetamine, as provided for in subparagraph b of  
11 paragraph 4 of subsection C of Section 2-415 of Title 63 of the  
12 Oklahoma Statutes;

13 ~~36.~~ 35. Trafficking one (1) gram or more of lysergic acid  
14 diethylamide (LSD), as provided for in subparagraph a of paragraph 5  
15 of subsection C of Section 2-415 of Title 63 of the Oklahoma  
16 Statutes;

17 ~~37.~~ 36. Trafficking twenty (20) grams or more of phencyclidine  
18 (PCP), as provided for in subparagraph a of paragraph 6 of  
19 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

20 ~~38.~~ 37. Trafficking thirty (30) tablets or ten (10) grams of  
21 3,4-Methylenedioxy methamphetamine, as provided for in subparagraph  
22 a of paragraph 7 of subsection C of Section 2-415 of Title 63 of the  
23 Oklahoma Statutes;

1       ~~39.~~ 38. Aggravated trafficking one hundred (100) tablets or  
2 thirty (30) grams of 3,4-Methylenedioxy methamphetamine, as provided  
3 for in subparagraph b of paragraph 7 of subsection C of Section 2-  
4 415 of Title 63 of the Oklahoma Statutes;

5       ~~40.~~ 39. Trafficking one thousand (1,000) grams or more of  
6 morphine, as provided for in paragraph 8 of subsection C of Section  
7 2-415 of Title 63 of the Oklahoma Statutes;

8       ~~41.~~ 40. Trafficking four hundred (400) grams or more of  
9 oxycodone, as provided for in paragraph 9 of subsection C of Section  
10 2-415 of Title 63 of the Oklahoma Statutes;

11       ~~42.~~ 41. Trafficking three thousand seven hundred fifty (3,750)  
12 grams or more of hydrocodone, as provided for in paragraph 10 of  
13 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

14       ~~43.~~ 42. Trafficking five hundred (500) grams or more of  
15 benzodiazepine, as provided for in paragraph 11 of subsection C of  
16 Section 2-415 of Title 63 of the Oklahoma Statutes;

17       ~~44.~~ 43. Trafficking one (1) gram or more of fentanyl or  
18 ~~carfentanyl~~ carfentanil, as provided for in subparagraph a of  
19 paragraph 12 of subsection C of Section 2-415 of Title 63 of the  
20 Oklahoma Statutes;

21       ~~45.~~ 44. Employing, hiring, or using an individual under fifteen  
22 (15) years of age to unlawfully transport, carry, sell, give away,  
23 prepare for sale, or peddle any controlled dangerous substance, as  
24

1 provided for in subsection D of Section 2-419.1 of Title 63 of the  
2 Oklahoma Statutes;

3 ~~46.~~ 45. Second or subsequent conviction for violating the  
4 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as  
5 provided for in subsection J of Section 4253 of Title 63 of the  
6 Oklahoma Statutes; and

7 ~~47.~~ 46. Third or subsequent conviction for violating the Vessel  
8 and Motor Chop Shop, Stolen and Altered Property Act, as provided  
9 for in subsection J of Section 4253 of Title 63 of the Oklahoma  
10 Statutes.

11 B. Any person convicted of a Class B3 criminal offense set  
12 forth in this section shall be punished in accordance with the  
13 corresponding penalties provided for in the Oklahoma Statutes.

14 SECTION 3. AMENDATORY 21 O.S. 2021, Section 644, as last  
15 amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025,  
16 Section 644), is amended to read as follows:

17 Section 644. A. Assault shall, upon conviction, be punishable  
18 by imprisonment in a county jail not exceeding ~~thirty (30)~~ ninety  
19 (90) days, or by a fine ~~of~~ not more than Five Hundred Dollars  
20 (\$500.00), or by both such ~~fine imprisonment and imprisonment fine~~.

21 B. Assault and battery shall, upon conviction, be punishable by  
22 imprisonment in a county jail not exceeding ~~ninety (90) days~~ six (6)  
23 months, or by a fine ~~of~~ not more than One Thousand Dollars

1 (\$1,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~  
2 fine.

3 C. Any person who commits any assault and battery against a  
4 current or former intimate partner or a family or household member  
5 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes  
6 shall be guilty of domestic abuse. Upon conviction, the defendant  
7 shall be punished by imprisonment in the county jail for not more  
8 than one (1) year, or by a fine not exceeding Five Thousand Dollars  
9 (\$5,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~  
10 fine. Upon conviction for a second or subsequent offense, the  
11 person shall be ~~punished~~ guilty of a Class B5 felony offense  
12 punishable by imprisonment in the custody of the Department of  
13 Corrections for not more than four (4) years, or by a fine not  
14 exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine~~  
15 imprisonment and ~~imprisonment~~ fine. The provisions of Section 51.1  
16 of this title shall apply to any second or subsequent offense.

17 D. ~~1. Any person who, with intent to do bodily harm and~~  
18 ~~without justifiable or excusable cause, commits any assault,~~  
19 ~~battery, or assault and battery upon an intimate partner or a family~~  
20 ~~or household member as defined by Section 60.1 of Title 22 of the~~  
21 ~~Oklahoma Statutes with any sharp or dangerous weapon, upon~~  
22 ~~conviction, is guilty of domestic assault or domestic assault and~~  
23 ~~battery with a dangerous weapon which shall be a felony and~~  
24 ~~punishable by imprisonment in the custody of the Department of~~

1 ~~Corrections not exceeding ten (10) years, or by imprisonment in a~~  
2 ~~county jail not exceeding one (1) year. The provisions of Section~~  
3 ~~51.1 of this title shall apply to any second or subsequent~~  
4 ~~conviction for a violation of this paragraph.~~

5       2. Any person who, with intent to do bodily harm and without  
6 ~~such~~ justifiable or excusable cause, ~~shoots~~ commits any assault and  
7 battery upon an intimate partner or a family or household member as  
8 defined by Section 60.1 of Title 22 of the Oklahoma Statutes by  
9 means of any deadly weapon or by such other means or force that is  
10 likely to produce death shall, upon conviction, be guilty of  
11 domestic assault and battery with a deadly weapon which shall be a  
12 Class A3 felony offense punishable by imprisonment in the custody of  
13 the Department of Corrections not exceeding life. The provisions of  
14 Section 51.1 of this title shall apply to any second or subsequent  
15 conviction for a violation of this ~~paragraph~~ subsection.

16       E. 1. Any person convicted of domestic abuse committed against  
17 a pregnant woman with knowledge of the pregnancy shall be guilty of  
18 a Class B5 felony offense, punishable by imprisonment in the custody  
19 of the Department of Corrections for not more than five (5) years.

20       2. Any person convicted of a second or subsequent offense of  
21 domestic abuse against a pregnant woman with knowledge of the  
22 pregnancy shall be guilty of a Class A3 felony, offense punishable  
23 by imprisonment in the custody of the Department of Corrections for  
24 not less than ten (10) years.

1        3. Any person convicted of domestic abuse committed against a  
2 pregnant woman with knowledge of the pregnancy and a miscarriage  
3 occurs or injury to the unborn child occurs shall, upon conviction,  
4 be guilty of a Class A1 felony, ~~offense~~ punishable by imprisonment  
5 in the custody of the Department of Corrections for not less than  
6 twenty (20) years.

7        F. Any person convicted of domestic abuse as defined in  
8 subsection C of this section that results in great bodily injury to  
9 the victim shall, upon conviction, be guilty of a Class B3 felony  
10 ~~and punished~~ offense punishable by imprisonment in the custody of  
11 the Department of Corrections for not more than ten (10) years, or  
12 by imprisonment in the county jail for not more than one (1) year.  
13 The provisions of Section 51.1 of this title shall apply to any  
14 second or subsequent conviction of a violation of this subsection.

15        G. Any person convicted of domestic abuse as defined in  
16 subsection C of this section that was committed in the presence of a  
17 child shall be punished by imprisonment in the county jail for not  
18 less than six (6) months nor more than one (1) year, or by a fine  
19 not exceeding Five Thousand Dollars (\$5,000.00), or by both such  
20 ~~fine imprisonment and imprisonment fine~~. Any person convicted of a  
21 second or subsequent domestic abuse as defined in subsection C of  
22 this section that was committed in the presence of a child shall be  
23 ~~punished~~ guilty of a Class B5 felony offense punishable by  
24 imprisonment in the custody of the Department of Corrections for not

1 less than one (1) year nor more than five (5) years, or by a fine  
2 not exceeding Seven Thousand Dollars (\$7,000.00), or by both such  
3 ~~fine imprisonment~~ and ~~imprisonment fine~~. The provisions of Section  
4 51.1 of this title shall apply to any second or subsequent offense.  
5 For every conviction of a domestic abuse crime in violation of any  
6 provision of this section committed against an intimate partner or a  
7 family or household member as defined by Section 60.1 of Title 22 of  
8 the Oklahoma Statutes, the court shall:

9 1. Specifically order as a condition of a suspended or deferred  
10 sentence that a defendant undergo treatment to bring about the  
11 cessation of domestic abuse as specified in paragraph 2 of this  
12 subsection;

13 2. a. The court shall require the defendant to complete an  
14 assessment and follow the recommendations of a  
15 batterers' intervention program to attend a fifty-two-  
16 week batterers' intervention program or a pilot  
17 batterers' intervention program, if available,  
18 certified by the Attorney General.

19 b. If the defendant participates in a batterers'  
20 intervention program, the program shall require the  
21 defendant to attend for a minimum of fifty-two (52)  
22 weeks, complete the program, and be evaluated before  
23 and after attendance of the program by program staff.  
24 Three unexcused absences in succession or seven

1 unexcused absences in a period of fifty-two (52) weeks  
2 from any court-ordered batterers' intervention program  
3 shall be prima facie evidence of the violation of the  
4 conditions of probation for the district attorney to  
5 seek acceleration or revocation of any probation  
6 entered by the court.

7 c. To investigate the effectiveness of additional  
8 batterers' intervention models, the Attorney General,  
9 beginning February 1, 2026, may certify two pilot  
10 batterers' intervention programs for a period of  
11 thirty-six (36) months located in Oklahoma and Tulsa  
12 Counties. Proposals for certification as a pilot  
13 batterers' intervention program may be approved only  
14 if made by an organization that was dually certified  
15 as a batterers' intervention program and a domestic  
16 violence and sexual assault program on or before  
17 January 1, 2025, or by an organization certified as a  
18 batterers' intervention program on or before January  
19 1, 2025, pursuant to a written agreement with an  
20 organization certified as a domestic violence and  
21 sexual assault program on or before January 1, 2025.  
22 Treatment provided through a pilot batterers'  
23 intervention program shall be evidence-based and shall  
24 be a minimum of twenty-six (26) weeks' duration.

1 Participation in a pilot batterers' intervention  
2 program shall be limited to fifty participants at any  
3 given time. Pilot batterers' intervention programs  
4 shall be self-funded, including any fees which may be  
5 charged to the participants; provided, however, state  
6 or federal funding may continue for domestic violence  
7 and sexual abuse programs.

- 8 d. The Office of the Attorney General shall promulgate  
9 rules for pilot batterers' intervention programs in  
10 consultation with domestic violence and batterers'  
11 intervention programs or advocacy organizations.

12 The Attorney General shall establish within his or her  
13 administrative rules a screening and referral process  
14 to review referrals to the pilot batterers'  
15 intervention programs; provided, however, individuals  
16 convicted of domestic abuse with a dangerous weapon or  
17 domestic abuse by strangulation shall not be eligible  
18 to participate in the pilot program. The Attorney  
19 General shall require reporting of data necessary for  
20 evaluation of the pilot programs. The pilot programs  
21 shall provide the Attorney General with annual updates  
22 and at the end of a pilot program term, a formal  
23 evaluation shall be done by a third party agreed upon  
24

1 by the Attorney General and the pilot program  
2 operator.

3 e. All participants in the pilot program shall be subject  
4 to a validated risk assessment conducted by a  
5 qualified professional. The results of the assessment  
6 shall be used to determine program placement based on  
7 the level of risk and individual circumstances.  
8 Participation in any shared or joint setting by both  
9 the survivor and the individual who has caused harm  
10 shall be prohibited under a pilot program. The  
11 Attorney General shall adopt rules to implement this  
12 subparagraph, including standards for risk assessment  
13 tools and differentiated response models.

14 f. The Attorney General may provide by rule for extension  
15 of no more than twenty-four (24) months beyond thirty-  
16 six (36) months of a pilot batterers' intervention  
17 program if recommended by the third-party evaluator.

18 g. Pilot batterers' intervention programs shall:  
19 (1) prioritize survivors' well-being in every part of  
20 the pilot program including screening,  
21 participation, reporting, and evaluation,  
22 (2) ensure that batterers' intervention programs use  
23 appropriate intervention strategies to assist the  
24 batterer in fostering the appropriate skills to:

- (a) stop the violence committed by the batterer,
- (b) accept personal accountability for battering and personal responsibility for the decision to stop or not to stop battering, and
- (c) change the existing attitudes and beliefs of the batterer that support the coercive behavior of the batterer,

(3) address all forms of battering,

(4) be culturally informed and provide culturally appropriate services to all participants,

(5) provide services that are affordable and accessible for participants, including participants with disabilities and limited English proficiency,

(6) provide a uniform standard for evaluating the performance of a batterers' intervention program,

(7) be informed by evidence-based practice, research, and proven field experience, including risk assessment, that enhances victim safety,

(8) foster local and statewide communication and interaction between and among batterers' intervention programs and victim advocacy programs, and

(9) ensure that batterers' intervention programs operate as an integrated part of the wider community response to battering.

h. A program for anger management, couples counseling, or family and marital counseling shall not solely qualify for the treatment requirement for domestic abuse pursuant to this subsection. The counseling may be ordered in addition to the treatment of domestic abuse or per evaluation as set forth below. If, after sufficient evaluation and attendance at required treatment sessions, the domestic violence treatment program determines that the defendant does not evaluate as a perpetrator of domestic violence or does evaluate as a perpetrator of domestic violence and should complete other programs of treatment simultaneously or prior to or subsequent to domestic violence treatment, including, but not limited to, programs related to ~~the~~ mental health, apparent substance or alcohol abuse or inability or refusal to manage anger, the defendant shall be ordered to complete the counseling as per the recommendations of the domestic violence treatment program;

3. a. The court shall set a review hearing no more than one hundred twenty (120) days after the defendant is

1 ordered to undergo treatment for domestic abuse to  
2 assure the attendance and compliance of the defendant  
3 with the provisions of this subsection. The court may  
4 delay sentencing of the defendant until the defendant  
5 has presented proof to the court of enrollment in a  
6 domestic abuse treatment program certified by the  
7 Attorney General and attendance at weekly sessions of  
8 such program. Such proof shall be presented to the  
9 court by the defendant no later than one hundred  
10 twenty (120) days after the defendant is ordered to  
11 such treatment. At such time, the court may complete  
12 sentencing, beginning the period of the sentence from  
13 the date that proof of enrollment is presented to the  
14 court, and schedule reviews as required by  
15 ~~subparagraphs a~~ this subparagraph and subparagraph b  
16 of this paragraph and paragraphs 4 and 5 of this  
17 subsection. Three unexcused absences in succession or  
18 seven unexcused absences in a period of fifty-two (52)  
19 weeks from any court-ordered treatment program shall  
20 be prima facie evidence of the violation of the  
21 conditions of probation for the district attorney to  
22 seek acceleration or revocation of any probation  
23 entered by the court.  
24

1           b.    The court shall set a second review hearing after the  
2                completion of the treatment to assure the attendance  
3                and compliance of the defendant with the provisions of  
4                this subsection and the treatment requirements. The  
5                court shall retain continuing jurisdiction over the  
6                defendant during the course of ordered counseling  
7                through the final review hearing;

8           4.    The court may set subsequent or other review hearings as the  
9                court determines necessary to assure the defendant attends and fully  
10              complies with the provisions of this subsection and the treatment  
11              requirements;

12          5.    At any review hearing, if the defendant is not  
13                satisfactorily attending a treatment program or is not in compliance  
14                with treatment requirements, the court may order the defendant to  
15                further or continue treatment or other necessary services. The  
16                court may revoke all or any part of a suspended sentence, deferred  
17                sentence, or probation pursuant to Section 991b of Title 22 of the  
18                Oklahoma Statutes and subject the defendant to any or all remaining  
19                portions of the original sentence;

20          6.    At the first review hearing, the court shall require the  
21                defendant to appear in court. Thereafter, for any subsequent review  
22                hearings, the court may accept a report on the progress of the  
23                defendant from the treatment program. There shall be no requirement  
24                for the victim to attend review hearings; and

1        7. If funding is available, a referee may be appointed and  
2 assigned by the presiding judge of the district court to hear  
3 designated cases set for review under this subsection. Reasonable  
4 compensation for the referees shall be fixed by the presiding judge.  
5 The referee shall meet the requirements and perform all duties in  
6 the same manner and procedure as set forth in Sections 1-8-103 and  
7 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees  
8 appointed in juvenile proceedings.

9        The defendant may be required to pay all or part of the cost of  
10 the treatment, in the discretion of the court.

11        H. As used in subsection G of this section, "in the presence of  
12 a child" means in the physical presence of a child; or having  
13 knowledge that a child is present and may see or hear an act of  
14 domestic violence. For the purposes of ~~subsections C and~~ subsection  
15 G of this section, "child" may be any child whether or not related  
16 to the victim or the defendant.

17        I. For the purposes of subsections C and G of this section, any  
18 conviction for assault and battery against an intimate partner or a  
19 family or household member as defined by Section 60.1 of Title 22 of  
20 the Oklahoma Statutes shall constitute a sufficient basis for a  
21 felony charge:

22        1. If that conviction is rendered in any state, county, or  
23 parish court of record of this or any other state; or  
24

1        2. If that conviction is rendered in any municipal court of  
2 record of this or any other state for which any jail time was  
3 served; provided, no conviction in a municipal court of record  
4 entered prior to November 1, 1997, shall constitute a prior  
5 conviction for purposes of a felony charge.

6        J. Any person who commits any assault and battery by  
7 strangulation or attempted strangulation against an intimate partner  
8 or a family or household member as defined by Section 60.1 of Title  
9 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a  
10 Class B5 felony offense of domestic abuse by strangulation ~~and shall~~  
11 ~~be punished~~ punishable by imprisonment in the custody of the  
12 Department of Corrections for a period ~~of~~ not less than one (1) year  
13 nor more than three (3) years, or by a fine ~~of~~ not more than Three  
14 Thousand Dollars (\$3,000.00), or by both such ~~fine~~ imprisonment and  
15 ~~imprisonment~~ fine. Upon a second or subsequent conviction for a  
16 violation of this section, the defendant shall be ~~punished~~ guilty of  
17 a Class B3 felony punishable by imprisonment in the custody of the  
18 Department of Corrections for a period ~~of~~ not less than three (3)  
19 years nor more than ten (10) years, or by a fine ~~of~~ not more than  
20 Twenty Thousand Dollars (\$20,000.00), or by both such ~~fine~~  
21 imprisonment and ~~imprisonment~~ fine. The provisions of Section 51.1  
22 of this title shall apply to any second or subsequent conviction of  
23 a violation of this subsection. As used in this subsection,  
24 "strangulation" means any form of asphyxia; including, but not

1 limited to, asphyxia characterized by closure of the blood vessels  
2 or air passages of the neck as a result of external pressure on the  
3 neck or the closure of the nostrils or mouth as a result of external  
4 pressure on the head.

5 K. Any district court of this state and any judge thereof shall  
6 be immune from any liability or prosecution for issuing an order  
7 that requires a defendant to:

8 1. Attend a treatment program for domestic abusers certified by  
9 the Attorney General;

10 2. Attend counseling or treatment services ordered as part of  
11 any suspended or deferred sentence or probation; and

12 3. Attend, complete, and be evaluated before and after  
13 attendance by a treatment program for domestic abusers, certified by  
14 the Attorney General.

15 L. There shall be no charge of fees or costs to any victim of  
16 domestic violence, stalking, or sexual assault in connection with  
17 the prosecution of a domestic violence, stalking, or sexual assault  
18 offense in this state.

19 M. In the course of prosecuting any charge of domestic abuse,  
20 stalking, harassment, rape, or violation of a protective order, the  
21 prosecutor shall provide the court, prior to sentencing or any plea  
22 agreement, a local history and any other available history of past  
23 convictions of the defendant within the last ten (10) years relating  
24 to domestic abuse, stalking, harassment, rape, violation of a

1 protective order, or any other violent misdemeanor or felony  
2 convictions.

3 N. Any plea of guilty or finding of guilt for a violation of  
4 subsection C, F, G, I, or J of this section shall constitute a  
5 conviction of the offense for the purpose of this ~~act~~ section or any  
6 other criminal statute under which the existence of a prior  
7 conviction is relevant for a period of ten (10) years following the  
8 completion of any court imposed probationary term; provided, the  
9 person has not, in the meantime, been convicted of a misdemeanor  
10 involving moral turpitude or a felony.

11 O. For purposes of subsection F of this section, "great bodily  
12 injury" means bone fracture, protracted and obvious disfigurement,  
13 protracted loss or impairment of the function of a body part, organ,  
14 or mental faculty, concussion, brain bleeds, injuries to more than  
15 ten percent (10%) of the body including, but not limited to,  
16 bruises, swelling, scratches, and scrapes, or substantial risk of  
17 death.

18 P. Any pleas of guilty or nolo contendere or finding of guilt  
19 to a violation of any provision of this section shall constitute a  
20 conviction of the offense for the purpose of any subsection of this  
21 section under which the existence of a prior conviction is relevant  
22 for a period of ten (10) years following the completion of any  
23 sentence or court imposed probationary term.

1       SECTION 4.       REPEALER       21 O.S. 2021, Section 644, as last  
2 amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025,  
3 Section 644), is hereby repealed.

4       SECTION 5.       REPEALER       21 O.S. 2021, Section 644, as last  
5 amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025,  
6 Section 644), is hereby repealed.

7       SECTION 6.       REPEALER       21 O.S. 2021, Section 644, as last  
8 amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,  
9 Section 644), is hereby repealed.

10       SECTION 7. This act shall become effective November 1, 2026.

11

12       60-2-17335       GRS       04/07/26

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